

FEDERAL MARITIME COMMISSION

NIELSEN & BAINBRIDGE, LLC,

Complainant,

v.

OCEAN NETWORK EXPRESS PTE. LTD.,
ORIENT OVERSEAS CONTAINER LINE
LIMITED, OOCL (EUROPE) LIMITED,
EVERGREEN LINE JOINT SERVICE
AGREEMENT (FMC#01 1982), EVERGREEN
MARINE CORPORATION (TAIWAN) LTD.,
EVERGREEN MARINE (UK) LIMITED,
ITALIA MARITTIMA SPA, EVERGREEN
MARINE (HONG KONG) LTD., EVERGREEN
MARINE (SINGAPORE) PTE. LTD., and
YANG MING MARINE TRANSPORT
CORPORATION,

Respondents.

Docket No. 25-02

ANSWER TO COMPLAINT
WITH AFFIRMATIVE DEFENSES

Respondents EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC#01 1982), EVERGREEN MARINE CORPORATION (TAIWAN) LTD., EVERGREEN MARINE (UK) LIMITED, ITALIA MARITTIMA SPA, EVERGREEN MARINE (HONG KONG) LTD., EVERGREEN MARINE (SINGAPORE) PTE. LTD., and YANG MING MARINE TRANSPORT CORPORATION (collectively "Answering Respondents"), by their attorneys Mahoney & Keane, LLP, answers the Complaint of Claimant upon information and belief as follows:

**AS AND FOR AN ANSWER TO “INTRODUCTION”, “THE COMPLAINANT”,
“THE RESPONDENTS”, “JURISDICTION AND AUTHORITY”, and “MATTERS
COMPLAINED OF (ALLEGED FACTS)”**

1. Respondent denies knowledge or information sufficient to form a belief as to the allegations contained in paragraphs “1”, “16”, “17”, “18”, “19”, “20”, “21”, “22”, “32”, “43”, “44”, “45”, “46”, “47”, “48”, “49”, “60”, “61”, “62”, “63”, “66”, “67”, “68”, “69”, “70”, “71”, “72”, “73”, “74”, “75”, “76”, “77”, “78”, “79”, “80”, “81”, “82”, “83”, “84”, “85”, “86”, “87”, “88”, “89”, “90”, “91”, “92”, “93”, “94”, “95”, “96”, “97”, “98”, “99”, “100”, “101”, “102”, “103”, “104”, “106”, “131”, “132”, “133”, “134”, “135”, “136”, “137”, “138”, “148”, “158”, “159”, “160”, “161”, “162”, “163”, “164”, “165”, “166”, “167”, “168”, “176”, “177”, “185”, “186”, and “191” of Claimant’s Complaint.

2. Respondent denies the allegations contained in paragraphs “2”, “3”, “4”, “5”, “6”, “7”, “8”, “9”, “9(a)”, “9(b)”, “9(c)”, “9(d)”, “10”, “11”, “12”, “13”, “14”, “15”, “28”, “29”, “30”, “31”, “32”, “33”, “34”, “35”, “36”, “37”, “38”, “39”, “40”, “41”, “42”, “50”, “51”, “52”, “53”, “54”, “55”, “56”, “57”, “58”, “59”, “64”, “65”, “105”, “107”, “108”, “109”, “110”, “111”, “112”, “113”, “114”, “115”, “116”, “117”, “118”, “119”, “120”, “121”, “122”, “123”, “124”, “125”, “126”, “127”, “128”, “129”, “130”, “139”, “140”, “141”, “142”, “143”, “144”, “145”, “146”, “147”, “149”, “150”, “151”, “152”, “153”, “154”, “155”, “156”, “157”, “169”, “170”, “171”, “172”, “173”, “174”, “175”, “178”, “179”, “180”, “181”, “182”, “183”, “184”, “187”, “188”, “189”, “190”, “192”, “193”, and “194” of Claimant’s Complaint.

3. Respondent admits the allegations contained in paragraphs “23”, “24”, “25”, “26”, and “27” of Claimant’s Complaint.

AS AND FOR AN ANSWER TO “COUNT I”

4. Respondent repeats and reiterates its responses to the allegations contained in paragraphs “1” through “194” of Claimant’s Complaint as if fully set forth herein at length in response to paragraph “195” of Claimant’s Complaint.

5. Respondent denies the allegation contained in paragraph “196” of Claimant’s Complaint.

AS AND FOR AN ANSWER TO “COUNT II”

6. Respondent repeats and reiterates its responses to the allegations contained in paragraphs “1” through “196” of Claimant’s Complaint as if fully set forth herein at length in response to paragraph “197” of Claimant’s Complaint.

7. Respondent denies the allegations contained in paragraphs “198” and “199” of Claimant’s Complaint.

AS AND FOR AN ANSWER TO “COUNT III”

8. Respondent repeats and reiterates its responses to the allegations contained in paragraphs “1” through “199” of Claimant’s Complaint as if fully set forth herein at length in response to paragraph “200” of Claimant’s Complaint.

9. Respondent denies the allegation contained in paragraph “201” of Claimant’s Complaint.

AS AND FOR AN ANSWER TO “COUNT IV”

10. Respondent repeats and reiterates its responses to the allegations contained in paragraphs “1” through “201” of Claimant’s Complaint as if fully set forth herein at length in response to paragraph “202” of Claimant’s Complaint.

11. Respondent denies the allegation contained in paragraph “203” of Claimant’s Complaint.

AS AND FOR AN ANSWER TO “CAUSATION” AND “REPARATIONS SOUGHT”

12. Respondent denies the allegations contained in paragraphs “204”, “205”, “206”, “207”, “208”, “209”, “210”, “211”, “212”, “213”, “214”, “215”, “216”, “217”, and “218” of Claimant’s Complaint.

AS AND FOR A FIRST SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

13. The Complaint fails to state a claim against Answering Respondents on which relief can be granted.

AS AND FOR A SECOND SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

14. Answering Respondents committed no Shipping Act violation and is not liable to Claimant on the cause of action alleged in the Complaint.

AS AND FOR A THIRD SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

15. If there was any loss to the Claimant as alleged in the Complaint, Answering Respondents are not liable to Claimant by reason of the provisions contained in the bill(s) of lading, contract of carriage, charter party, applicable tariffs, special contract, service contract, or dock receipt.

AS AND FOR A FOURTH SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

16. Any damages sustained by Claimant, as alleged in the Complaint, were proximately, directly, and solely caused by the negligent acts of third persons over whom Answering Respondents had and have no direction or control.

AS AND FOR A FIFTH SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

17. The claims or parts thereof are barred by the applicable statute of limitations, contractual terms between the subject parties and/or the doctrine of laches, and Answering Respondents puts Claimant to its proof of compliance with the provisions for giving of notice and the commencement of this as provided for in the aforesaid contract of carriage.

AS AND FOR A SIXTH SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

18. Claimant knowingly and intentionally assumed any and all risks inherent in the shipment(s) of the goods at issue by sea, which is a complete bar to recovery.

AS AND FOR A SEVENTH SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

19. Any injuries that may have been sustained by Claimants, as alleged in the Complaint, occurred as a direct result of Claimant's own negligent conduct, and not by any negligence or fault of Answering Respondents, and, as such, Claimant is barred from recovery in this action.

AS AND FOR AN EIGHTH SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

20. Claimant is guilty of culpable conduct in the events giving rise to the claims now asserted in the Complaint, and Claimant's recovery, if any, must be diminished in proportion thereto.

AS AND FOR A NINTH SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

21. Claimant has failed to mitigate its damages.

AS AND FOR A TENTH SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

22. Any damage as alleged in the Complaint was caused by Restraint of Princes, Act of God, and/or force majeure, and Answering Respondents are thus under no liability therefor.

AS AND FOR AN ELEVENTH SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

23. In the event of the Carrier's failure to meet the annual Minimum Quantity Commitment, the Service Contract provided for specific remedies at odds with the claims for loss now asserted in the Complaint.

AS AND FOR A TWELFTH SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

24. Complainant has failed to state a claim for which relief may be granted because the Statute and Rules cited, as well as the Commission's interpretation of the purported Shipping Act violations, may not be lawfully applied to conduct which occurred before the Statute, Rule, and/or interpretation was adopted.

AS AND FOR A THIRTEENTH SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

25. The claimed Shipping Act violations are neither customary nor continuous.

AS AND FOR A FOURTEENTH SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

26. Answering Respondents' practices were neither unjust nor unreasonable.

AS AND FOR A FIFTEENTH SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

27. Answering Respondents' practices were not the proximate cause of Claimant's alleged loss.

AS AND FOR A SIXTEENTH SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

28. The Complaint concerns breach of contract issues, rather than a Shipping Act violation.

AS AND FOR A SEVENTEENTH SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

29. Claimant lacks standing to bring the Complaint or seek the relief requested.

AS AND FOR A EIGHTEENTH SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

30. This Answer is made without waiver of any jurisdictional defenses or rights to arbitrate or proceed in another forum that may exist between any of the parties.

AS AND FOR A NINETEENTH SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

31. The Complaint is barred in whole or in part by waiver and/or estoppel.

AS AND FOR A TWENTIETH SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

32. The Complaint fails to allege the essential elements of 46 U.S.C. § 41102(c), 46 U.S.C. § 41104(a)(2); 56 U.S.C. § 41104(a)(10), and/or 46 C.F.R. § 545.5.

AS AND FOR A TWENTY-FIRST SEPARATE AND COMPLETE AFFIRMATIVE DEFENSE

33. At all pertinent times, Answering Respondents acted as an agent of a disclosed principal.

**AS AND FOR A TWENTY-SECOND SEPARATE AND COMPLETE AFFIRMATIVE
DEFENSE**

34. The Federal Maritime Commission lacks subject matter jurisdiction over the Complaint.

**AS AND FOR A TWENTY-THIRD SEPARATE AND COMPLETE
AFFIRMATIVE DEFENSE**

35. The Complaint concerns breach of contract issues which the Complainant has breached, including without limitation claiming damages in breach of a liquidated damage agreement.

**AS AND FOR A TWENTY-FOURTH SEPARATE AND COMPLETE
AFFIRMATIVE DEFENSE**

36. The conduct which is the subject to the Complaint does not constitute a practice within the meaning of 46 U.S.C. § 41102(c).

**AS AND FOR A TWENTY-FIFTH SEPARATE AND COMPLETE
AFFIRMATIVE DEFENSE**

37. Complainant lacks privity of contract with Answering Respondents.

**AS AND FOR A TWENTY-SIXTH SEPARATE AND COMPLETE
AFFIRMATIVE DEFENSE**

38. All demurrage and detention charges collected were for delays caused by factors for which the shipper was responsible; none were collected for delays caused by factors beyond the shipper's control.

**AS AND FOR A TWENTY-SEVENTH SEPARATE AND COMPLETE
AFFIRMATIVE DEFENSE**

39. Respondent never unreasonable refused to deal or negotiate with Complainant.

**RESERVATION OF RIGHT TO SEEK ENFORCEMENT OF THE FORUM
SELECTION/ARBITRATION CLAUSE IN THE CONTRACT GOVERNING THE
CLAIMS AT ISSUE**

40. Answering Respondents reserve the right to seek enforcement of the forum selection clause and/or choice of law clause contained in the applicable service contracts governing the claims at issue.

**RESERVATION OF RIGHTS TO AMEND THIS ANSWER AND/OR TO BRING A
THIRD-PARTY CLAIM**

41. Answering Respondents reserve their right to amend this Answer and/or to plead any additional affirmative defenses and/or to bring a third-party claim as the facts may warrant.

RESERVATION OF RIGHTS TO SEEK SEVERANCE

42. The Complainant's claims against the various Respondents do not arise from common transactions or occurrences, and Answering Respondents reserve their right to request that they be severed, accordingly.

RESERVATION OF RIGHTS TO SEEK A MORE DEFINITIVE STATEMENT

43. The Complainant's claims are so vague and/or ambiguous as to require particularization, and Answering Respondents reserve their right to request that they amplified, accordingly.

WHEREFORE, Answering Respondents demand judgment dismissing the Complaint and awarding to Answering Respondents costs, fees, including reasonable attorneys' fees and disbursements of this action, as well as such other and further relief as may be deemed just and proper.

Dated: New York, New York
February 3, 2025

Respectfully submitted,

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MARINE (UK) LIMITED, ITALIA MARITTIMA SPA,
EVERGREEN MARINE (HONG KONG) LTD.,
EVERGREEN MARINE (SINGAPORE) PTE. LTD., and
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